



Laws and Regulations on Social Media and Disinformation

Addressing misinformation through legal frameworks effectively

Introduction and Agenda



Overview of Social Media Regulations

Risks of Social Media Platforms

Social media platforms pose risks including disinformation, hate speech, and harmful content impacting society globally.

Global Regulatory Efforts

Governments in Canada, the USA, and the EU develop regulations balancing free expression with safety and accountability.

Ethical and Societal Impacts

Regulations affect stakeholders by promoting democratic values while mitigating online harms and ethical concerns.

Agenda



Canadian Legislation

Overview of key Canadian laws including Bill C-63, Canada Elections Act, and CSIS Act addressing governance and security.

US Regulatory Acts

Summary of US laws such as Stop Hiding Hate Act, California AB 587, and Section 230 of Communications Decency Act focusing on online regulation.

European Union Regulations

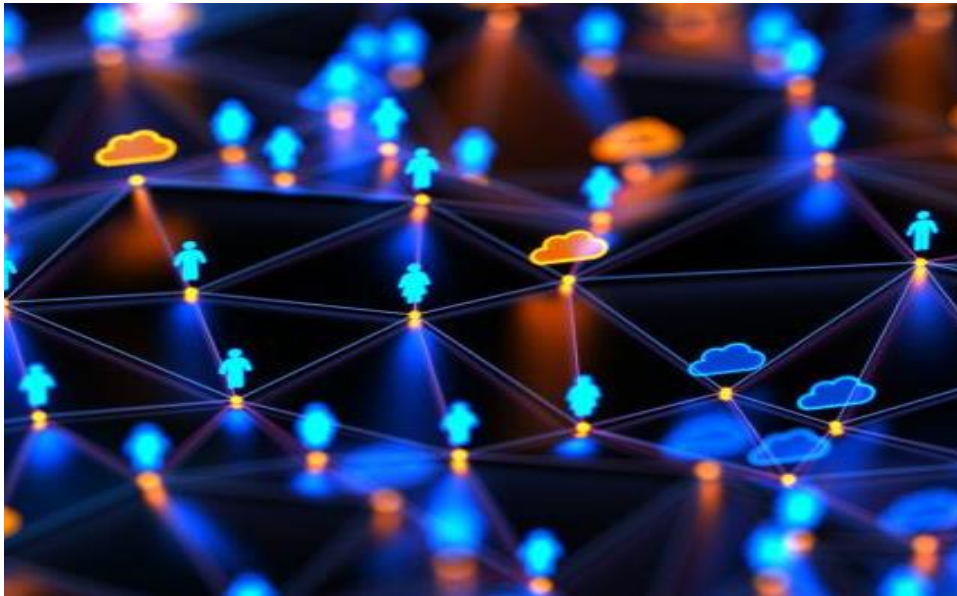
Details on EU laws like Digital Services Act and European Media Freedom Act targeting digital services and media freedom.

Comparative Insights

Analysis comparing approaches across Canada, USA, and EU in digital and media legislation frameworks.

Canada Laws

Bill C-63



Regulation of Political Ads

The Act enacts new regulations on social media platforms and improves on the Criminal Code and Canadian Human Rights Act

Protects Vulnerable Groups

Mitigates the exposure of harmful content by enforcement of the act.

Stakeholders and Challenges

Involves government agencies, platforms, users, and law enforcement.

Benefits and Harms

Shields children through platform measures and complaint mechanisms to ssave lines and reduce trauama.

Canada Elections Act



Regulation of Political Ads

The Act enforces transparency and sponsor identification in paid political advertising on social media during elections.

Preventing Disinformation

Aims to protect voter trust by combating disinformation and foreign interference in the electoral process.

Stakeholders and Challenges

Involves Elections Canada, political parties, platforms, and voters, facing enforcement and compliance cost challenges.

Criticism and Limitations

Critics argue the Act may lag behind platform changes and could restrict free speech during elections.



CSIS Act

Establishment and Purpose

The CSIS Act of 1984 created the Canadian Security Intelligence Service to safeguard national security through intelligence collection.

Separation and Oversight

The Act separates intelligence gathering from enforcement and ensures democratic oversight via NSIRA and the Federal Court.

Ethical and Privacy Concerns

Critics highlight risks of privacy erosion, secrecy, and mission creep, though judicial warrants help balance security and rights.

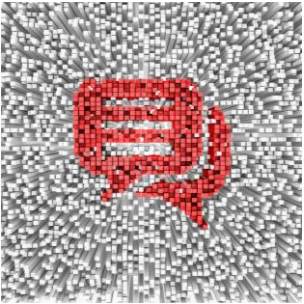
USA Laws

Stop Hiding Hate Act



Legislation Overview

The act mandates large social media platforms to report content moderation practices biannually for increased transparency.



Targeted Harmful Content

Focuses on reducing hate speech, disinformation, and foreign interference on social media platforms.



Stakeholders and Impact

Involves legislators, advocacy groups, platforms, and marginalized communities with concerns over enforcement challenges.



California AB 587

Law Requirements

AB 587 requires social media platforms to publish terms of service and submit reports on content moderation biannually.

Benefits and Criticisms

The law enhances transparency and reduces misinformation but raises concerns over compliance costs and speech chilling effects.

Political and Ethical Impact

AB 587 reflects political resistance to Big Tech and raises ethical debates on free speech and enforcement consistency.

Communications Decency Act (Section 230)



Legal Protection for Platforms

Section 230 shields online platforms from liability for user-generated content, promoting internet innovation and growth.

Moderation and Free Speech Balance

The law allows platforms to moderate content in good faith while supporting free speech rights online.

Challenges and Criticism

Broad interpretations enable harmful content like disinformation, raising concerns about abuse and reduced accountability.

Political Debate and Reform

Ongoing polarized debates surround calls for reform amid lobbying by tech companies to maintain immunity.

EU Laws

Digital Services Act (DSA)



Enhanced Online Safety

The DSA mandates platforms to reduce systemic risks like disinformation and hate speech, improving online safety for users.

Transparency and Accountability

Platforms must meet transparency requirements, fostering accountability and user trust in digital services.

Enforcement and Fines

Non-compliant platforms face fines up to 6% of global turnover, signaling strong regulatory enforcement.

User Rights and Criticisms

The DSA strengthens user rights but raises concerns about over-enforcement and impacts on smaller platforms.

The Code, integrated under the DSA in 2025, strengthens commitments against disinformation with enforceable rules.

It promotes transparency, fact-checking, and demonetization to protect democracy and public health from false information.

Concerns include over-moderation, difficulty distinguishing falsehoods from opinions, and ethical biases in fact-checking.

Potential biases and power imbalances favoring large platforms raise ethical questions about fair content regulation.



European Media Freedom Act (EMFA)

Safeguarding Media Independence

EMFA ensures media independence and pluralism by protecting editorial freedom and journalistic sources across the EU.

Transparency and Regulation

The Act mandates transparency in media ownership and state advertising to counter political interference and digital threats.

Ethical and Legal Challenges

EMFA balances ethical concerns on spyware use with judicial oversight and compliance to fundamental rights.

Impact on Media Outlets

While fostering democracy, EMFA may impose compliance challenges on smaller media outlets and raise editorial disputes.

Comparative Insights

Similarities and Differences Across Regions



Common Regulatory Goals

Canada, USA, and EU aim to enhance online safety, transparency, and accountability while protecting free expression.

Regional Policy Focus

Canada prioritizes child protection, USA emphasizes transparency and liability shields, EU enforces systemic risk mitigation.

Ethical and Political Challenges

Ethical issues like censorship and privacy persist, influenced by political dynamics and differing regulatory approaches.

Key Takeaways



Key Takeaways

Importance of Regulation

Regulating social media is vital to protect democracy, public safety, and user rights from disinformation.

Diverse Legal Frameworks

Laws in Canada, the USA, and EU vary but share goals to counter harmful content and foreign interference.

Balancing Rights and Risks

Policymakers must balance transparency, accountability, and free expression to prevent censorship or privacy breaches.

Ongoing Dialogue

Continuous conversation among governments, platforms, and society is essential to adapt digital regulations effectively.

Additional Questions